



TransMatch
Software

Software Development Agreement

Prepared for: WONG EUWIN

Prepared by : ALAN CHIAN WEILON
Created on : 23-Dec-2024

Software Development Agreement

SOFTWARE DEVELOPMENT AGREEMENT

This Software Development Agreement ("Agreement") is entered into on 27-Dec-2024, by and between:

Software Solution Provider:

Chian Weilon (Alan), Software Project Manager and Developer.

Client:

Wong Euwin, an individual seeking software development services.

Project Name: TransMatch

1. Introduction

This Agreement outlines the terms and conditions under which the Software Solution Provider will provide software development services to the Client. The purpose of this Agreement is to secure both parties and prevent any disputes in the future.

2. Scope of Work

The Software Solution Provider shall provide services as outlined in the Scope of Work document, including software requirements, development stages, and deliverables. Any additional work outside the scope must be mutually agreed upon in writing, with a process and timeline for approval defined within 7 days, and will be billed separately.

3. Timeline

The services will commence on **[01-Jan-2025]** and will be completed by the handover date of **[15-Apr-2025]**. Both parties agree to adhere to the specified timeline, and any delays must be communicated in writing. If delays are caused by the Client, such as changes to business requirements or UI/UX after signing the business requirements document and before the completion date, the timeline will be adjusted accordingly to accommodate these changes.

4. Payment Terms

- **Development Fee:** The development cost is RM 50 per day.
- **Deposit:** A deposit of RM 200 is required before signing the software development contract. The deposit will be refunded after the contract is signed, provided that no work has begun.

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- **Milestone Payments:**
 - **50%** payment (*RM 3,850*) upon project commencement (project signing and requirement confirmation).
 - **30%** payment (*RM 2,310*) upon completion of 50% of the core modules (e.g., Framework design, UI/UX design, Data Import and Parsing, Customer Info Mapping).
 - **20%** payment (*RM 1,540*) upon final project delivery and customer acceptance.
- **Third-Party Service Fees:**
 - Any third-party services required during development, such as cloud-based database subscription or other service fees, will be borne by the Client.
 - Any tools, computer machinery, or operational tools (e.g., internal, workspace) required for the project shall also be provided and borne by the Client.
- **Additional Terms:** Payment is due within 14 days after invoice issuance. Overdue payments will result in a delay of the project timeline until payment is received. To proceed to the next stage of development, payment for each stage must be made in full. All paid fees are non-refundable after contract signing.

5. Changes and Revisions

Changes to the original scope must be documented and agreed upon in writing. Any changes affecting budget or timeline will be invoiced separately.

6. Confidentiality

Both parties agree to keep any sensitive information shared during the course of this Agreement confidential. This obligation is limited to the project duration and ends upon project completion, unless otherwise agreed in writing.

7. Termination Clause

Either party may terminate the Agreement by giving 14 days' written notice. In the event of termination, the Client will compensate the Software Solution Provider for all work completed up to the termination date.

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8. Liability

The Software Solution Provider shall not be liable for any indirect, incidental, or consequential damages arising out of the use of the software. Examples of such damages include, but are not limited to, loss of business profits, loss of data, or downtime costs. The Software Solution Provider's liability for any claims under this Agreement shall be limited to the total fees paid by the Client.

9. Intellectual Property Rights

The Software Solution Provider retains ownership of the source code and all related intellectual property until full payment is made. Upon full payment, the Client will be granted a non-exclusive, non-transferable license to use the software solely for internal purposes. The Client is not permitted to sublicense, modify, or distribute the software without obtaining prior written consent from the Software Solution Provider.

10. Post-Sales Support and Maintenance

- **Free Maintenance Period:** The first 3 months include free maintenance for bug fixes. Excludes upgrades or new features.
- **Paid Support Package:** Available after the free period at RM 200 for 10 sessions, covering minor adjustments.
- **Software Upgrades and Feature Additions:** Charged at RM 50 per day until the end of 2025, after which the development fee may be subject to adjustment in subsequent years, with a separate quote for each request.

11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Malaysia.

12. Miscellaneous

- **Notices:** All notices under this Agreement shall be in writing and delivered to the addresses specified above. Acceptable methods of delivery include email, courier, or registered mail, and electronic delivery via email is considered acceptable.
- **Entire Agreement:** This Agreement constitutes the entire understanding between the parties concerning its subject matter.

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- **Amendments:** This Agreement may only be amended in writing signed by both parties. Amendments must be appended as an addendum to this Agreement to ensure clarity.

13. Signatures

By signing below, both parties agree to the terms and conditions outlined in this Agreement.

Software Solution Provider Signature:

CHIAN WEILON (ALAN)
NRIC: 930720-14-6827
Date:

Client Signature:

WONG EUWIN
NRIC: 981017-56-5333
Date:

CONFIDENTIAL - SOFTWARE DEVELOPMENT AGREEMENT

This Agreement contains proprietary and confidential information. Unauthorized reproduction or distribution of this Agreement or any of its parts is strictly prohibited and may result in legal action.